

APPENDIX B

CITY CONTRACT # _____

COUNTY AGREEMENT # _____

CONTRACT AGENT AND FISCAL MANAGER ADDENDUM AGREEMENT

This Contract Agent and Fiscal Manager Addendum Agreement (the “Addendum Agreement”) by and between the Cheyenne Area Metropolitan Planning Organization (the “MPO”) and its participating jurisdiction members, including the City of Cheyenne, Wyoming (the “City”), Laramie County, Wyoming, the Federal Highway Administration, the Federal Transit Administration and the Wyoming Department of Transportation (all entities, collectively, the “Parties”).

RECITALS

WHEREAS, the Parties entered into a Master Agreement, (the “Master Agreement”), to provide for the cooperative, comprehensive, and continuing (3-C) transportation planning for the area of Cheyenne, Wyoming and its environs, said Master Agreement being incorporated herein at this point as if fully set forth; and

WHEREAS, The MPO carries out the cooperative, comprehensive, and continuing transportations systems planning process in a manner consistent with appropriate federal guidelines and distributes Federal Aid Planning Funds as set forth and described in the Master Agreement; and

WHEREAS, the MPO, from time to time, needs to enter into contracts and agreements for carrying out its functions and the distribution of funds thereof; and

WHEREAS, the City has in the past served as contract agent and fiscal manager for and on behalf of the MPO, to custody and dispense the MPO’s funds and on a case-by-case basis, enter into contracts for and on behalf of the MPO in order to carry out its functions; and

WHEREAS, the Parties desire to appoint the City as contract agent and fiscal manager for and on behalf of the MPO, to custody and dispense the MPO’s funds and on a case-by-case basis, enter into contracts for and on behalf of the MPO in order to carry out its functions, as hereinafter provided; and

WHEREAS, the Parties desire to incorporate this Addendum Agreement in its entirety by reference into the Master Agreement.

NOW, THEREFORE, the Parties, effective as of the day first written above, in consideration of the mutual promises and covenants herein contained, agree by and between them as follows:

I. INCORPORATION OF RECITALS

The recitals set forth above are hereby incorporated herein as if fully set forth as part of this Addendum Agreement.

II. APPOINTMENT OF THE CITY TO ACT AS THE CONTRACT AGENT AND FISCAL MANAGER FOR AND ON BEHALF OF THE MPO

The Parties hereby appoint the City to enter into contracts for and on behalf of the MPO and to further act as the MPO's Fiscal Manager under the following conditions:

1. That any contract to be entered into on behalf of the MPO by the City, which exceeds \$20,000 in total, is approved in writing by a majority of the voting members of the MPO Policy Committee prior to its execution by the City in accordance with City policies, ordinances and state statutes.
2. That any contract for professional services which is \$20,000 or less in total may be entered into on behalf of the MPO by the City, so long as written approval is granted by the MPO Director prior to contract execution by the City in accordance with City policies, ordinances and state statutes.
3. That the City, in its capacity as the Fiscal Manager for and on behalf of the MPO shall not disburse funds for payment of consulting and professional services contracts or for expenditures not otherwise authorized by the MPO in an approved budget (Unified Planning Work Program), unless authorized in writing by a majority of voting members of the Policy Committee of the MPO.
4. That the City, in entering into any contract or disbursing funds on behalf of the MPO under this Addendum Agreement, shall act solely as an agent of the MPO, in accordance with the policies and objectives of the MPO, as determined by the Policy Committee of the MPO.
5. That the City, in determining whether it is appropriate to enter into any contract or to disburse funds on behalf of the MPO under this Addendum Agreement, shall restrict the scope of its determination to and shall only consider information relevant to whether the proposed contract or disbursement (i) satisfies the requirements of the Master Agreement; (ii) satisfies the requirements of the Addendum Agreement; and (iii) satisfies relevant Federal Transportation Planning Statutes and related rules and regulation, including but not limited to 23 U.S.C. 104(f), 23 U.S.C. 134, 49 U.S.C. 5303-5306, 23 C.F.R. Part 420, 23 C.F.R. Part 450, 23 C.F.R. Part 500, 48 C.F.R. Part 31, and 49 C.F.R. Parts 18-19.
6. In the event that the MPO Policy Committee, in accordance with MPO policies and procedures, has properly approved and recommended that the MPO enter into a contract or disburse funds, and the City has determined that the conditions set

forth in Paragraph 5, above, have been fully satisfied, the contract or disbursement of funds is in the best interest of the Parties.

7. Upon the City entering into an approved contract, transaction or disbursement of funds, the City shall have all lawful authority to enforce any such contract, and to further make any such authorized disbursements for and on behalf of the MPO, in accordance with City policies, ordinances and state statutes.
8. The MPO staff will be subject to City Personnel Rules and Regulations. Notwithstanding the foregoing, personnel decisions including, but not limited to, employee evaluations, wages, benefits, and supervision, will be conducted by the Mayor or his designee, with direct oversight by the MPO Policy Committee.

III. RATIFICATION OF PRIOR AGREEMENTS

The prior Agreements between the Parties dated respectively November 23, 1981, as amended by the Agreements dated June 15, 1982, and November 9, 1987 and September 26, 2005, are hereby ratified as amended hereby.

IV. AGENCY ACCEPTANCE

The City hereby accepts and agrees to act as the agent of the MPO for approved contracts, transactions or disbursement of funds and as its Fiscal Manager as set forth herein. Each of the Parties reserves the right to terminate this agency appointment of the City as established in this Addendum Agreement upon thirty (30) days written notice to the other Parties. In the case of the City, the termination notice shall be addressed to “the Attention of the City Mayor, City of Cheyenne, 2101 O’Neil Ave., Cheyenne, WY 82001”; in the case of Laramie County, Wyoming, the termination notice shall be addressed to “the Attention of the Chairman, Laramie County Board of Commissioners, 310 West 19th Street Suite 300, Cheyenne, WY 82001”; in the case of the Federal Highway Administration, the termination notice shall be addressed to “the Attention of the Division Administrator, Federal Highway Administration, 2617 East Lincolnway, Suite D, Cheyenne, WY 82001-3716”; in the case of the Federal Transit Administration, the termination notice shall be addressed to “the Attention of the Regional Administrator, Federal Transit Administration, 12300 W. Dakota Avenue, Lakewood, Colorado 80228”; in the case of the Wyoming Department of Transportation, the termination notice shall be addressed to “the Attention of the Chief Engineer, Wyoming Department of Transportation, 5300 Bishop Boulevard, Cheyenne, WY 82009”; and in the case of the MPO, said notice shall be addressed to the voting members of the MPO Policy Committee through the MPO at 2101 O’Neil Avenue, Cheyenne, WY 82001.

V. MISCELLANEOUS AGREEMENTS

This Addendum Agreement may be executed in more than one copy, however, each copy shall constitute but one and the same Addendum Agreement.

This Addendum Agreement may only be modified in writing, executed by all Parties.

VI. SIGNATURES: In witness whereof, the parties to this Agreement, either personally or through their duly authorized representatives have executed this Agreement on the day and date set out below, and certify that they have read, understood, and agreed to the terms and conditions of this Agreement.

The effective date of this Agreement is the day and date last signed and executed by the duly authorized representatives of the parties to this Agreement shown below.

Approved as to form:

CITY OF CHEYENNE, WYOMING

City Attorney

By: _____
Richard Kaysen, Mayor

ATTEST:

Carol Intlekofer, City Clerk

Date

Approved as to form:

LARAMIE COUNTY, WYOMING

County Attorney

By: _____
Troy Thompson, Chairman
Board of County Commissioners

ATTEST:

Debbye Lathrop, County Clerk

Date

FEDERAL HIGHWAY ADMINISTRATION

Joseph Dailey, Division Administrator

Date

FEDERAL TRANSIT ADMINISTRATION

Linda Gehrke, Regional Administrator

Date

Approved as to form:

**WYOMING DEPARTMENT OF
TRANSPORTATION**

Senior Assistant Attorney General
State of Wyoming

By: _____
Del McOmie, P.E., Chief Engineer

Date

ATTEST:

Sandra Scott, Transportation
Commission Secretary